2020111001067 55
Total Pages: 19
11/10/2020 02:55 PM Fees: $30.00
Lisa Posthumus Lyons, County Clerk/Register
Kent County, MI

G012

19/8/9

I HEREBY CERTIFY that there are No Tax Liens or Titles held by the State or any Individual against the within description, and all Taxes on same are paid for five years previous to the date of this instrument, as appears by the records in my office. This certificate does not apply to current taxes, if any now in process of collection.
DATE 11-10 20 20
Deputy, Kent County Treasurer, Grand Rapids, Michigan

# FIRST AMENDMENT TO MASTER DEED OF

## *43 NORTH*

RECEIVED ROD
2020 NOV 10 PM 2:54

(Act 59, Public Acts of 1978
as amended)

REPLAT NO. 1 TO KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982

(1) First Amendment to Master Deed of 43 North.

(2) Exhibit "A" to First Amendment to Master Deed: Affidavit of Mailing as to Notices required by Section 90(5) of the Michigan Condominium Act.

(3) Exhibit "B" to First Amendment to Master Deed: Replat No. 1 to Condominium Subdivision Plan for 43 North.

No interest in real estate being conveyed hereby, no revenue stamps are required.

This First Amendment to Master Deed Drafted By
and Return to After Recording:

TODD A. HENDRICKS (P45782)
RHOADES McKEE PC
55 Campau Ave. NW, Suite 300
Grand Rapids, MI 49503

PPN 41-06-35-100-043 '14
VERIFIED BY PD&M AB
From 41-06-35-100-040 '14
41-06-35-100-039 '07
41-06-35-301-001 '92

**FIRST AMENDMENT TO MASTER DEED**

***43 NORTH***

(Act 59, Public Acts of 1978 as amended)

Wolven Investments, LLC, a Michigan limited liability company of 3115 Railway Drive, Byron Center, Michigan 49315, as Developer of 43 North, a condominium project established pursuant to the Master Deed thereof recorded on November 13, 2014, at Instrument No. 20141113-0094509, Kent County, Michigan records (the "**Master Deed**"), being Kent County Condominium Subdivision Plan No. 982 (the "**Project**"), pursuant to Section 90 of the Michigan Condominium Act and the provisions of Article XII of the Master Deed, hereby amends the Master Deed in accordance with this First Amendment to Master Deed (the "**First Amendment**") for purposes of expanding and enlarging the Project to include eighteen (18) additional Units by the addition to the Project of the land area which is legally described on **Schedule 1** attached hereto (the "**Expansion Area**"), and revising the Condominium Subdivision Plan consistent with the same. To accomplish these purposes, the Master Deed is amended as follows:

AMENDMENT

1. The Developer does, upon the recording hereof, submit and establish the Expansion Area as part of the Project and does declare that the Expansion Area will be held, conveyed, hypothecated, encumbered, leased, rented, occupied, improved, or in any other manner utilized subject to the provisions of the Act, and to the covenants, conditions, restrictions, uses, limitations, and affirmative obligations set forth in the Master Deed, all of which will be deemed to run with the land and will be a burden and a benefit to Developer, its successors and assigns, and to any persons acquiring or owning an interest in the Expansion Area, their grantees, successors, heirs, personal representatives, administrators and assigns.

2. Section 1.2 of Article I of the Master Deed, entitled "Nature of Project," is amended to add the following sentence at the end of such Section 1.2:

> "The second phase of the Project consists of Units 26 through 43, inclusive, as set forth completely in Replat No. 1 of Kent County Subdivision Plan No. 982."

3. The legal description contained in Section 2.1 of Article II of the Master Deed is replaced and superseded in its entirety with the following legal description which expands and enlarges the Project:

> "Part of the West 1/2 of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence N89°52'07"E 849.42 feet along

the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2328.71 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East-West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Also subject to the road right of way for Elstner Avenue over the West 33.0 feet thereof. Contains 43 Units and 60.22 acres."

4. The Percentage of Value assigned to each Unit in the Project shall remain equal, in accordance with Section 5.2 of Article V of the Master Deed.

5. Section 6.4 of Article VI of the Master Deed, entitled "Utility Easements," is deleted in its entirety and replaced with the following provisions to include references to Lapham Drive (66' Pvt.) and Lapham Court (66' Pvt.):

"6.4 Utility Easements. An Easement for Public and Private Utilities is hereby created within the private road right-of ways (depicted as Hopewell Drive (66' Pvt.), Hopewell Court (66' Pvt.), Thorntons Court, Lapham Drive (66' Pvt.) and Lapham Court (66' Pvt.) on Exhibit "B"), and within the ten (10) foot private easement for public utilities depicted on Exhibit "B", as a non-exclusive perpetual easement for the benefit of the Co-owners, for utility companies and for governmental entities providing utility services to the Project and/or having utility service facilities in the Project for the following purposes only: the right to install, repair, replace, maintain, and/or extend gas lines, electricity lines, telephone lines, cablevision lines, water mains, and sewer mains; the right to install equipment associated with such utility services such as lines, valves, hydrants, fittings, and other improvements; and rights of ingress and egress for the installation, repair, replacement, maintenance, and extension of such utility services and facilities at reasonable times."

6. Section 6.7 of Article VI of the Master Deed, entitled "Drainage/Detention Easements," is deleted in its entirety and replaced with the following provisions:

> "6.7 Drainage/Detention and Utility Easements. Non-exclusive perpetual easements in favor of the Developer during the Development Period, and thereafter in favor of the Association, shall exist on over, along, across, through and under those portions of the Project, designated as storm water drainage easements on Exhibit "B", for the installation, construction, maintenance, repair and replacement of storm water drainage and detention facilities and equipment. Units 4, 5, 6, 7, 8, 13, 14, 15, 27, 28, 29, 31, 32, 37, 38, 39, 40, and 43 are encumbered in part by a private easement for drainage and detention as depicted on the Condominium Subdivision Plan attached as Exhibit "B". All maintenance, repair, and replacement costs associated with such facilities and equipment shall be the responsibility of the Association, except as provided in Section 6.6 above. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 4, 5, 6, 15, 16 and 36 are or will be encumbered by a utility easement for the benefit of Plainfield Charter Township. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Unit 25 are encumbered by a utility easement for the benefit of Plainfield Charter Township as recorded in Instrument No. 20151026-0094347, Kent County, Michigan records. The Co-owners of any Unit encumbered by a drainage easement shall incur no cost (beyond their share of costs incurred by the Association) with respect to the construction, maintenance, repair, or replacement of such equipment and facilities within such easements except to the extent of repair or replacement caused by an intentional or negligent act of the Co-owner or his agents, invitees, or family members. No changes shall be made by a Unit Co-owner in the grading of any Unit or area used as drainage swales which would alter surface water run0off drainage patterns without the prior written consent of the Developer during the Development Period and thereafter the Association. During the Development Period, the Developer reserves the right to establish additional drainage easements across Units and Common Elements, within the Project, in the Developer's Discretion. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 4, 15, 36, 37, 38, 39 and 43 are encumbered by a flooding easement. This Project is Benefitted and Burdened by a floodway easement and storm drain easement located west of Unit 5 as recorded in Instrument No. 20160817-0069327, Kent County, Michigan records. The Association is responsible for maintaining such drainage facilities and equipment and the costs of the same shall constitute expenses of administration hereunder. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 1, 14, 15, 16, 17, 20, 21, 25, 26, 27, 38, 39 and 40 are encumbered by a 30' wide easement to Consumers Energy as recorded in Instrument No. 20070522-0054156, Kent County, Michigan records. As shown on the Condominium Subdivision Plan attached as Exhibit "B", portions of Units 1,

26 and 27 are encumbered by a 66' wide easement to Michigan Consolidated Gas Company as recorded in Liber 2047, Page 485, Kent County, Michigan records.

7. Section 12.1 of Article XII of the Master Deed, entitled "Expansion of Project," is deleted in its entirety and replaced with the following provisions:

"12.1 Expansion of Project. The Project established pursuant to the Master Deed (as amended by the First Amendment) consists of forty-three (43) Units which may, at the election of Developer, without the consent of any Co-Owners, be treated as the first two phases of an expandable condominium under the Act. Additional Units, if any, will be established upon all or some portion of the following described real property (the "Proposed Future Development"):

Subject to the approval of Algoma Township, the Proposed Future Development may also include all or any portion of the following described property:

S 247.5 FT OF N 495.0 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 7.62 A (41-06-35-301-002), and S 341.52 FT OF N 836.52 FT OF NW 1/4 SW 1/4 * SEC 35 T9N R11W 9.98 A (41-06-35-301-003)."

8. Section 6.2.9 of Article VI of the Bylaws, entitled "Minimum Building Opening Elevations," is deleted in its entirety and replaced with the following provisions:

"6.2.9 Minimum Building Opening Elevations. The residences constructed upon Units 4, 5, 6, 7, 8, 14, 15, 26, 27, 28, 29, 39, 40, 41, 42, and 43 shall comply with the minimum building opening elevation requirements noted on Sheets 5 and 6 of Replat No. 1 to the Condominium Subdivision Plan, which is attached as Exhibit "B" to this First Amendment."

9. The following provisions are added as new Sections 6.2.13 and 6.2.14 of Article VI of the Condominium Bylaws, entitled "Restrictions":

"6.2.13 Septic Systems – Phase II. Section 6.2.11, entitled "Septic Systems," shall not apply to Units 26 through 43, inclusive ("Phase II Units").

The following provisions shall only apply to the Phase II Units:

(i) With the application to obtain a permit from the Kent County Health Department (KCHD) for a septic tank and effluent disposal areas, the Co-owner will submit to KCHD a site development plan drawn to scale that will locate the dwelling, drives and right-of-ways, utilities, Unit boundary

lines, building site and proposed septic location. As part of the application, KCHD may require a topographical map showing existing and proposed contours. Contour intervals shall not exceed two (2) feet. KCHD may require a professional engineer or licensed surveyor to submit plans on behalf of the Unit Co-owner.

(ii) KCHD cannot guarantee that all individual site development plans will be approved. Owners are encouraged to submit site development plans for review prior to purchasing a lot.

(iii) Utilities, buildings, drives, or other structures that may interfere with the installation and operation of the on-site sewage disposal system shall not be permitted within the designated initial and replacement sewage disposal areas as indicated on the permit issued by KCHD.

(iv) Site modification in the area of the initial and replacement wastewater disposal systems may be required by KCHD. Site modification would typically include soil removal and backfill with approved washed sand (2NS) or low pressure dosed mound type systems.

(v) Designated initial and replacement sewage disposal areas shall not be located within any easement or Common Element area and must be isolated a minimum of 100 feet from surface water, 50 feet from any water well, 50 feet from the high water elevation in the wetland area bounded by Units 36-39, 25 feet from foundation walls containing subsurface drains, 25 feet from storm sewer catch basins, 10 feet from solid storm sewers, 10' from water mains and service connections, and 10' from Unit boundaries.

6.2.14 Water Systems – Phase II. Section 6.2.12, entitled "Water Systems," shall not apply to Phase II Units.

The following provisions shall only apply to the Phase II Units: No water supply wells will be permitted on any Unit. Each Unit will be served by a public water supply. Installation of irrigation wells, vertical loop geothermal borehole, or similar structures will NOT be permitted by KCHD."

10. The Condominium Subdivision Plan attached to the Master Deed as Exhibit B, is hereby amended by Replat No. 1 of Kent County Subdivision Plan No. 982, attached hereto as **Exhibit B** ("**Replat No. 1**"), which Replat No. 1 replaces and supersedes the Condominium Subdivision Plan attached to the Master Deed in its entirety.

11. Replat No. 1 depicts the expansion and enlargement of the Project to include Units 26 through 43, inclusive, within the Expansion Area. In accordance with the Replat No. 1, the Project contains a total of forty-three (43) Units, which may be expanded by the Developer in

accordance with Article XII of the Master Deed.

12. Capitalized terms not defined in this First Amendment shall have the meanings assigned to such terms in the Master Deed.

13. Except as specifically amended and modified by this First Amendment, all provisions of the Master Deed shall remain in full force and effect.

14. In the event of a conflict or inconsistency between the terms of this First Amendment and the terms of the Master Deed, the terms of this First Amendment shall govern.

[*the remainder of this page is intentionally blank*]

This First Amendment to Master Deed was duly executed on November 9th, 2020.

**DEVELOPER:**

WOLVEN INVESTMENTS, LLC, a Michigan limited liability company

By: KENSINGTON REALTY GROUP, INC., a Michigan corporation, its Manager

By: _____
Dale H. Kraker
Its: President

Acknowledged before me by Dale H. Kraker, President of Kensington Realty Group, Inc., a Michigan corporation, the Manager of Wolven Investments, LLC, a Michigan limited liability company, on behalf of the company, in Kent County, Michigan, on November 9th, 2020.

_____
MICHELLE FRY, Notary Public
Kent County, Michigan
Acting in Kent County, Michigan
My commission expires: 9/19/2025

MICHELLE FRY
Notary Public - State of Michigan
County of Kent
My Commission Expires Sep 19, 2025
Acting in the County of _____



2181466_1

**Schedule 1**

**Expansion Area**

Part of the West 1/2 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest 1/4 corner of said Section; thence N89°52'07"E 1336.54 feet along the North line of said Section; thence S00°39'11"W 2155.19 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section to the Place of Beginning; thence continuing S00°39'11"W 173.52 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; thence N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East-West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence S51°07'59"E 202.74 feet; thence S41°52'26"E 227.00 feet; thence S10°11'01"W 39.50 feet; thence Southeasterly 66.96 feet along a 60.00 foot radius curve to the right, the long chord of which bears S47°50'36"E 63.54 feet; thence Southeasterly 35.79 feet along a 50.00 foot radius curve to the left, the long chord of which bears S36°22'40"E 35.03 feet; thence S56°53'05"E 153.03 feet; thence Northeasterly 33.15 feet along a 1233.00 foot radius curve to the right, the long chord of which bears N33°37'12"E 33.15 feet; thence N34°23'25"E 144.99 feet; thence S55°45'10"E 66.00 feet; thence S34°23'25"W 141.03 feet; thence S61°42'26"E 462.35 feet; thence S89°20'49"E 33.00 feet to the Place of Beginning. Subject to the road right of way for Wolven Avenue over the East 33.0 feet thereof. Contains 21.19 acres.

**EXHIBIT A**

**AFFIDAVIT OF MAILING**

Dale H. Kraker, being duly sworn, deposes and says that:

1. He is President of Kensington Realty Group, Inc., a Michigan corporation, the Manager of Wolven Investments, LLC, a Michigan limited liability company, the Developer of 43 North (the "**Project**"), a condominium project located in Kent County, Michigan.

2. On September 14, 2020, notice of the First Amendment to Master Deed of the Project was sent to all Co-owners of record in the Project as required by Section 90(5) of the Michigan Condominium Act, pursuant to the Co-owners roster maintained by the Developer. Such notices were sent by first class mail, postage fully prepaid.

Further deponent saith not.

Dale H. Kraker

Acknowledged before me by Dale H. Kraker in Kent County, Michigan, on November 9th, 2020.

Notary Public, Kent County, Michigan
Acting in Kent County, Michigan
My commission expires: 9/19/2025

MICHELLE FRY
Notary Public - State of Michigan
County of Kent
My Commission Expires Sep 19, 2025
Acting in the County of _____

DRAFTED BY:

TODD A. HENDRICKS (P45782)
RHOADES McKEE PC
55 Campau Ave. NW, Suite 300
Grand Rapids, MI 49503

# REPLAT NO. 1 TO KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982
# EXHIBIT "B" TO THE MASTER DEED OF:

# 43 NORTH

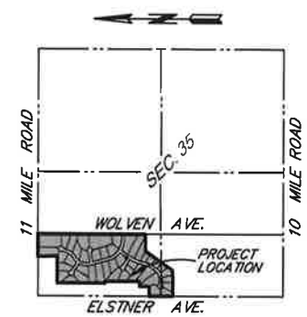
## ALGOMA TOWNSHIP, KENT COUNTY, MICHIGAN
## SECTION 35, TOWN 9 NORTH, RANGE 11 WEST

ATTENTION COUNTY REGISTER OF DEEDS
THE CONDOMINIUM SUBDIVISION PLAN NUMBER MUST BE ASSIGNED IN CONSECUTIVE SEQUENCE. WHEN A NUMBER HAS BEEN ASSIGNED TO THIS PROJECT IT MUST BE PROPERLY SHOWN ON THE SURVEYORS CERTIFICATE ON THIS SHEET.

DEVELOPER: WOLVEN INVESTMENTS LLC
3115 RAILWAY DRIVE BYRON CENTER, MI 49315

SURVEYOR: ROOSIEN & ASSOCIATES, SURVEYING AND ENGINEERING, P.L.L.C.
5055 PLAINFIELD AVE. N.E. GRAND RAPIDS, MI 49525

DESCRIPTION OF 43 NORTH:
Part of the West 1/2 of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, described as: Commencing at the Northwest corner of said Section; thence N89°52'07"E 849.42 feet along the North line of said Section to the Place of Beginning; thence continuing N89°52'07"E 487.12 feet along the North line of said Section; thence S00°39'11"W 2328.71 feet along the East line of the West 1/2 of the Northwest 1/4 of said Section; N89°57'35"W 368.64 feet; thence S35°57'29"W 709.98 feet; thence N89°57'35"W 554.15 feet parallel with the East–West 1/4 line of said Section; thence N00°33'50"E 247.51 feet along the West line of said Section to the West 1/4 corner of said Section; thence N00°35'20"E 260.00 feet along the West line of said Section; thence S89°24'40"E 208.71 feet; thence N00°35'20"E 208.71 feet parallel with the West line of said Section; thence S89°24'40"E 104.29 feet; thence N00°35'20"E 750.00 feet along the East line of the West 313.00 feet of the Northwest 1/4 of said Section; thence N89°24'40"W 32.00 feet; thence N00°35'20"E 1019.55 feet along the East line of the West 281 feet of the Northwest 1/4 of said Section; thence N89°52'07"E 573.65 feet parallel with the North line of said Section; thence N00°07'53"W 417.42 feet to the Place of Beginning. Subject to the road rights of way for 11 Mile Road and Wolven Avenue, over the North and East 33.0 feet thereof. Also subject to the road right of way for Elstner Avenue over the West 33.0 feet thereof. Contains 43 Units and 60.22 acres.




LOCATION MAP
NOT TO SCALE

SURVEYORS CERTIFICATE

I, KEVIN ROOSIEN, A LICENSED LAND SURVEYOR IN THE STATE OF MICHIGAN HEREBY CERTIFY:

THAT THE SUBDIVISION PLAN KNOWN AS KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. 982 AS SHOWN ON THE ACCOMPANYING SURVEY PLAN REPRESENTS A SURVEY ON THE GROUND MADE UNDER MY DIRECTION;

THAT THERE ARE NO EXISTING ENCROACHMENTS UPON THE LAND AND PROPERTY AS DESCRIBED HEREIN;

THAT THE REQUIRED MONUMENTS AND IRON MARKERS WILL BE SET IN THE GROUND AS REQUIRED BY THE RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF THE PUBLIC ACTS OF 1978 AS AMENDED

THAT THE ACCURACY OF THIS SURVEY IS WITHIN THE LIMITS REQUIRED BY THE RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF THE PUBLIC ACTS OF 1978 AS AMENDED

THAT THE BASIS OF BEARING IS BASED ON THE NORTH LINE OF SECTION 35 BEING N89°52'07"E – PER THE ALGOMA TOWNSHIP CONTROL DIAGRAM (KENT COUNTY REMONUMENTATION)

PROPOSED — NOV. 9, 2020
KEVIN ROOSIEN, P.S. NO. 31604 — DATE

THIS CONDOMINIUM SUBDIVISION PLAN IS NOT REQUIRED TO CONTAIN DETAILED PROJECT DESIGN PLANS PREPARED BY THE APPROPRIATE LICENSED DESIGN PROFESSIONAL. SUCH PROJECT DESIGN PLANS ARE FILED, AS PART OF THE CONSTRUCTION PERMIT APPLICATION, WITH THE ENFORCING AGENCY FOR THE STATE CONSTRUCTION CODE IN THE RELEVANT GOVERNMENTAL SUBDIVISION. THE ENFORCING AGENCY MAY BE A LOCAL BUILDING DEPARTMENT OR THE STATE DEPARTMENT OF LICENSING AND REGULATORY AFFAIRS.

SHEET INDEX:

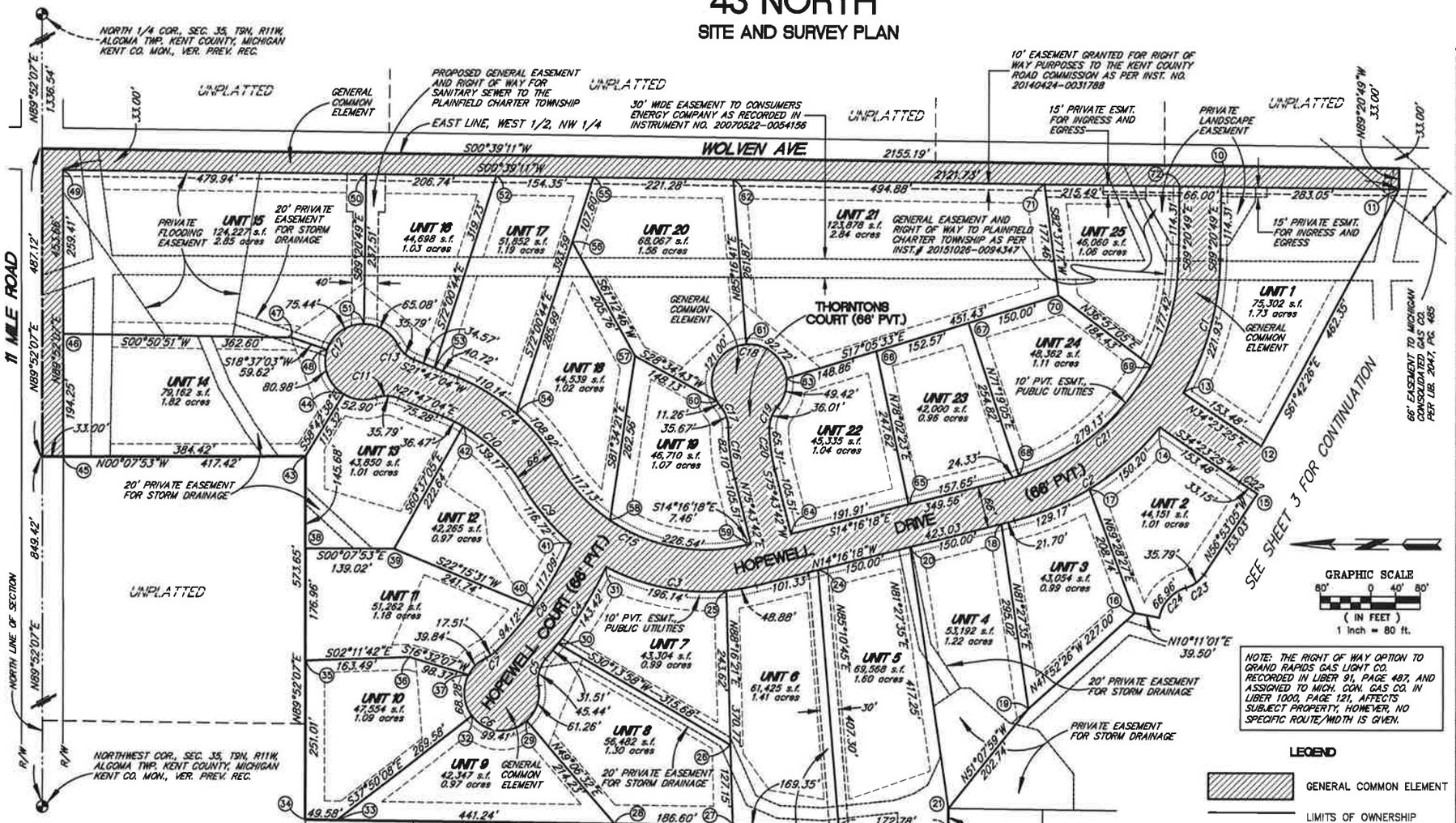
SHEET NO. 1 ..... COVER SHEET
SHEET NO. 2 ..... SITE AND SURVEY PLAN
SHEET NO. 3 ..... SITE AND SURVEY PLAN
SHEET NO. 4 ..... SITE AND SURVEY PLAN
SHEET NO. 5 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 6 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 7 ..... UTILITY AND EASEMENT PLAN
SHEET NO. 8 ..... EASEMENT ENLARGEMENT PLAN
SHEET NO. 9 ..... OVERALL SITE PLAN

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C1

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

# 43 NORTH

## SITE AND SURVEY PLAN




NOTE: THE RIGHT OF WAY OPTION TO GRAND RAPIDS GAS LIGHT CO. RECORDED IN LIBER 91, PAGE 487, AND ASSIGNED TO MICH. CON. GAS CO. IN LIBER 1000, PAGE 121, AFFECTS SUBJECT PROPERTY, HOWEVER, NO SPECIFIC ROUTE/WIDTH IS GIVEN.

**LEGEND**

GENERAL COMMON ELEMENT

LIMITS OF OWNERSHIP

### TABLE OF COORDINATES

| PT# | NORTHING | EASTING |
|---|---|---|
| 10 | 3131.424 | 6282.196 |
| 11 | 2848.394 | 6278.970 |
| 12 | 3067.541 | 5871.850 |
| 13 | 3190.783 | 5956.206 |
| 14 | 3228.062 | 5901.742 |
| 15 | 3073.805 | 5796.698 |
| 16 | 3267.143 | 5607.622 |
| 17 | 3340.331 | 5803.106 |
| 18 | 3479.981 | 5747.848 |
| 19 | 3436.170 | 5456.102 |
| 20 | 3625.351 | 5710.870 |
| 21 | 3563.389 | 5298.250 |
| 22 | 3563.718 | 5266.252 |
| 23 | 3736.491 | 5268.028 |
| 24 | 3770.722 | 5673.892 |
| 25 | 3917.013 | 5640.375 |
| 26 | 3909.669 | 5396.867 |
| 27 | 3905.836 | 5269.769 |
| 28 | 4092.423 | 5271.686 |
| 29 | 4232.664 | 5433.636 |
| 30 | 4182.415 | 5555.819 |
| 31 | 4106.765 | 5677.302 |
| 32 | 4320.731 | 5441.578 |
| 33 | 4533.635 | 5276.221 |
| 34 | 4583.214 | 5276.731 |
| 35 | 4583.789 | 5527.741 |
| 36 | 4420.419 | 5534.003 |
| 37 | 4326.119 | 5506.007 |
| 38 | 4584.195 | 5704.697 |
| 39 | 4445.173 | 5705.016 |
| 40 | 4221.447 | 5613.448 |
| 41 | 4162.350 | 5714.287 |
| 42 | 4335.937 | 5899.022 |
| 43 | 4584.529 | 5850.375 |
| 44 | 4524.635 | 5948.925 |
| 45 | 4968.948 | 5849.493 |
| 46 | 4969.393 | 6043.749 |
| 47 | 4606.830 | 6038.386 |
| 48 | 4550.333 | 6019.353 |
| 49 | 4969.988 | 6303.157 |
| 50 | 4490.081 | 6297.686 |
| 51 | 4492.789 | 6060.195 |
| 52 | 4283.359 | 6295.329 |
| 53 | 4382.097 | 5991.225 |
| 54 | 4250.561 | 5919.217 |
| 55 | 4129.014 | 6293.570 |
| 56 | 4162.242 | 6191.230 |
| 57 | 4063.156 | 6010.897 |
| 58 | 4101.636 | 5751.173 |
| 59 | 3877.961 | 5714.715 |
| 60 | 3933.073 | 5940.036 |
| 61 | 3886.188 | 6030.068 |
| 62 | 3907.744 | 6291.047 |
| 63 | 3821.597 | 5976.733 |
| 64 | 3813.998 | 5730.985 |
| 65 | 3628.012 | 5778.295 |
| 66 | 3679.315 | 6020.484 |
| 67 | 3533.484 | 6065.327 |
| 68 | 3451.862 | 5823.935 |
| 69 | 3242.723 | 5998.547 |
| 70 | 3390.109 | 6109.415 |
| 71 | 3412.899 | 6285.405 |
| 72 | 3197.419 | 6282.949 |

### TABLE OF CURVES

| CURVE | LENGTH | RADIUS | LONG CHORD | DELTA |
|---|---|---|---|---|
| C1 | 221.93' | 433.00' | S74°39'49"E 219.51' | 29°21'59" |
| C2 | 279.37' | 433.00' | S32°45'19"E 274.55' | 36°58'01" |
| C3 | 245.02' | 333.00' | S06°48'25"W 239.53' | 42°09'27" |
| C4 | 174.93' | 633.00' | S56°39'45"E 174.38' | 15°50'02" |
| C5 | 45.44' | 50.00' | N74°46'51"W 43.89' | 52°04'16" |
| C6 | 268.79' | 60.00' | S27°31'22"W 94.12' | 256°40'42" |
| C7 | 17.51' | 50.00' | S34°10'10"E 17.42' | 20°03'47" |
| C8 | 211.21' | 567.00' | S54°52'21"E 209.99' | 21°20'34" |
| C9 | 116.72' | 333.00' | S49°26'04"W 116.12' | 20°04'59" |
| C10 | 175.64' | 267.00' | N40°37'48"E 172.49' | 37°41'30" |
| C11 | 35.79' | 50.00' | N01°16'38"E 35.03' | 41°00'52" |
| C12 | 274.40' | 60.00' | N68°12'56"W 90.55' | 262°01'43" |

### TABLE OF CURVES

| CURVE | LENGTH | RADIUS | LONG CHORD | DELTA |
|---|---|---|---|---|
| C13 | 35.79' | 50.00' | S42°17'29"W 35.03' | 41°00'52" |
| C14 | 219.06' | 333.00' | N40°37'48"E 215.13' | 37°41'30" |
| C15 | 343.67' | 267.00' | S22°36'07"W 320.43' | 73°44'52" |
| C16 | 82.10' | 333.00' | S82°47'28"W 81.89' | 14°07'34" |
| C17 | 35.67' | 50.00' | N69°25'10"E 34.91' | 40°52'10" |
| C18 | 274.40' | 60.00' | N00°00'05"W 90.55' | 262°01'41" |
| C19 | 36.01' | 50.00' | N69°37'19"W 35.24' | 41°16'08" |
| C20 | 65.31' | 267.00' | S82°44'09"W 65.15' | 14°00'56" |
| C21 | 480.88' | 367.00' | S51°48'34"E 447.21' | 75°04'30" |
| C22 | 33.15' | 1233.00' | S33°37'12"W 33.15' | 1°32'26" |
| C23 | 35.79' | 50.00' | S36°22'40"E 35.03' | 41°00'52" |
| C24 | 66.96' | 60.00' | N47°50'36"W 63.54' | 63°56'45" |

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GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C2

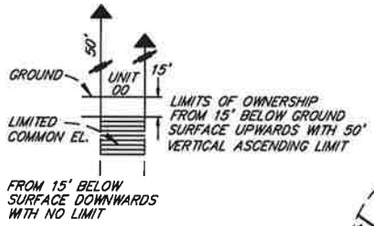
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

NOV. 9, 2020
DATE

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

# 43 NORTH

## SITE AND SURVEY PLAN



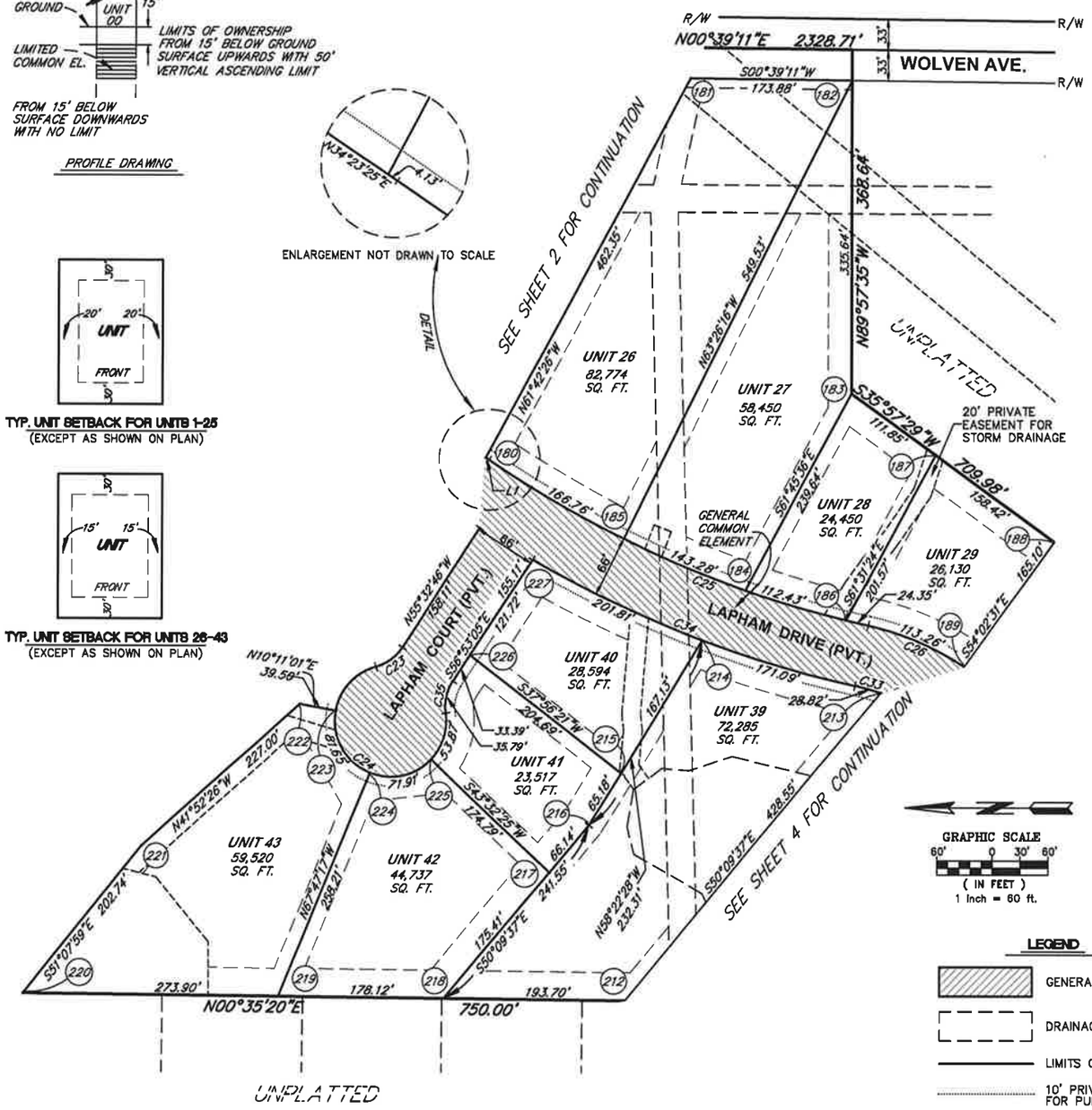

PROFILE DRAWING




TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)




TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)




| TABLE OF CURVES | | | | |
|---|---|---|---|---|
| CURVE | LENGTH | RADIUS | LONG CHORD | DELTA |
| C23 | 35.79' | 50.00' | S36°22'40"E 35.03' | 41°00'52" |
| C24 | 274.40' | 60.00' | S33°06'55"W 90.55' | 262°01'43" |
| C25 | 446.82' | 1167.00' | S23°25'18"W 444.10' | 21°56'15" |
| C26 | 113.26' | 308.00' | N22°59'14"E 112.62' | 21°04'08" |
| C33 | 88.99' | 242.00' | N22°59'14"E 88.49' | 21°04'08" |
| C34 | 372.90' | 1233.00' | S21°07'01"W 371.48' | 17°19'42" |
| C35 | 35.79' | 50.00' | S77°23'31"E 35.03' | 41°00'52" |

TABLE OF POINTS

| Point # | Northing | Easting |
|---|---|---|
| 180 | 3067.541 | 5871.850 |
| 181 | 2848.394 | 6278.970 |
| 182 | 2701.430 | 6261.666 |
| 183 | 2674.766 | 5941.348 |
| 184 | 2788.154 | 5730.235 |
| 185 | 2920.265 | 5785.460 |
| 186 | 2680.343 | 5698.488 |
| 187 | 2584.232 | 5875.674 |
| 188 | 2455.998 | 5782.650 |
| 189 | 2552.945 | 5649.008 |
| 212 | 2917.699 | 5291.614 |
| 213 | 2643.153 | 5620.670 |
| 214 | 2834.827 | 5676.889 |

| Point # | Northing | Easting |
|---|---|---|
| 215 | 2922.462 | 5534.582 |
| 216 | 2956.642 | 5479.080 |
| 217 | 2999.014 | 5428.294 |
| 218 | 3111.391 | 5293.605 |
| 219 | 3289.503 | 5295.435 |
| 220 | 3563.389 | 5298.250 |
| 221 | 3436.170 | 5456.102 |
| 222 | 3267.143 | 5607.622 |
| 223 | 3228.263 | 5600.638 |
| 224 | 3191.890 | 5534.482 |
| 225 | 3125.715 | 5548.698 |
| 226 | 3083.891 | 5660.428 |
| 227 | 3017.392 | 5762.378 |

TABLE OF LINES

| LINE | BEARING | LENGTH |
|---|---|---|
| L1 | N34°23'25"E | 153.48' |

GRAPHIC SCALE
60' 0 30' 60'
( IN FEET )
1 inch = 60 ft.

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES

Roosien & Associates
SURVEYING AND ENGINEERING
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C3

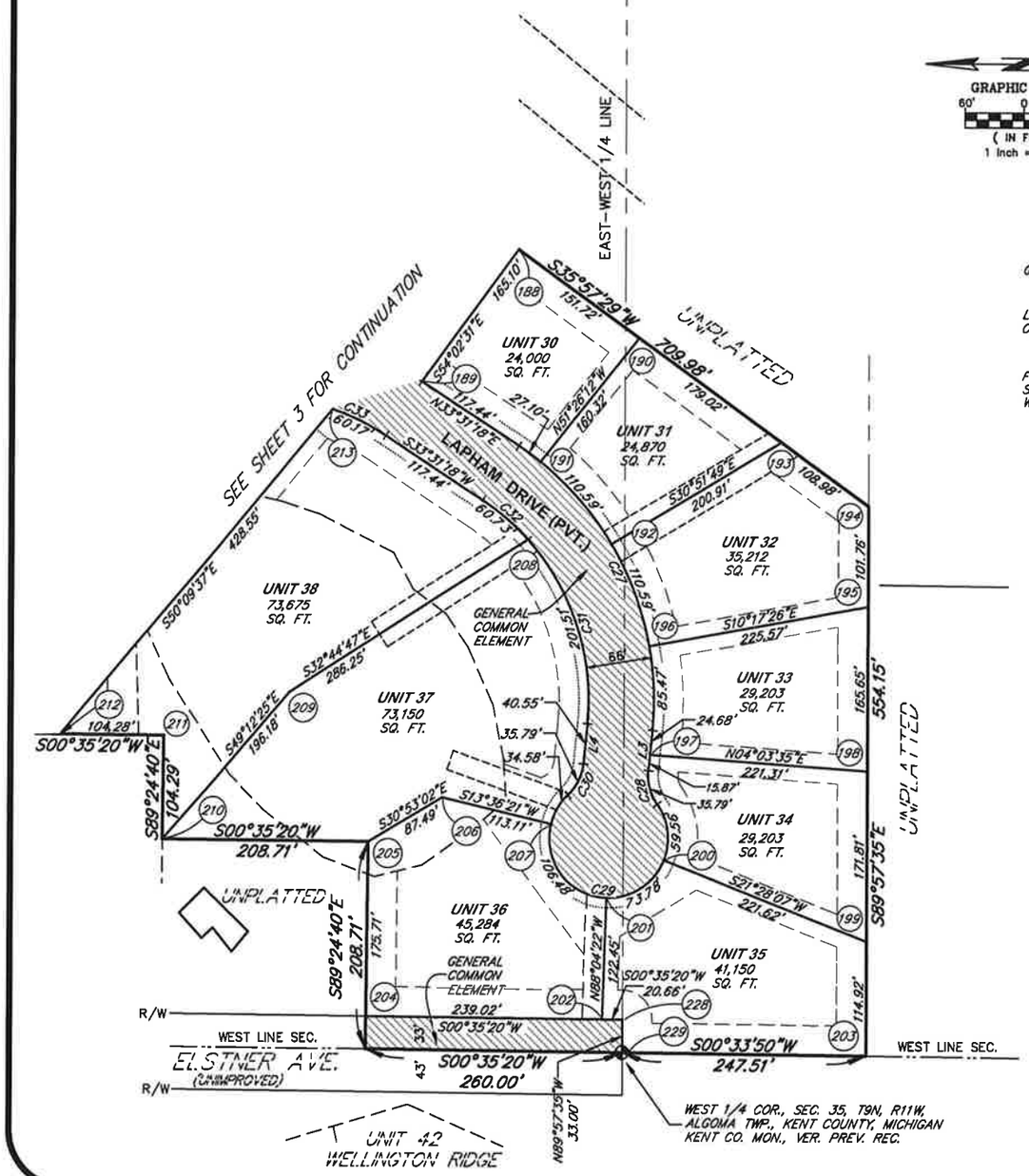
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

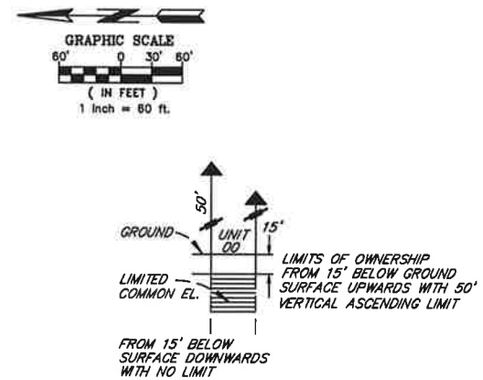
PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

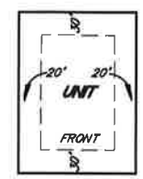
# 43 NORTH

## SITE AND SURVEY PLAN




PROFILE DRAWING




TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)

TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

LEGEND

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES

TABLE OF CURVES

| CURVE | LENGTH | RADIUS | LONG CHORD | DELTA |
|---|---|---|---|---|
| C27 | 333.76' | 308.00' | N64°33'56"E 317.67' | 62°05'15" |
| C28 | 35.79' | 50.00' | S75°06'08"W 35.03' | 41°00'52" |
| C29 | 274.40' | 60.00' | S05°36'33"W 90.55' | 262°01'43" |
| C30 | 35.79' | 50.00' | S63°53'01"E 35.03' | 41°00'52" |
| C31 | 201.51' | 242.00' | N71°45'16"E 195.74' | 47°42'35" |
| C32 | 60.73' | 242.00' | N40°42'38"E 60.57' | 14°22'40" |
| C33 | 88.99' | 242.00' | N22°59'14"E 88.49' | 21°04'08" |

TABLE OF POINTS

| Point # | Northing | Easting |
|---|---|---|
| 188 | 2455.998 | 5782.650 |
| 189 | 2552.945 | 5649.008 |
| 190 | 2333.190 | 5693.562 |
| 191 | 2433.127 | 5568.208 |
| 192 | 2360.743 | 5485.379 |
| 193 | 2188.285 | 5588.445 |
| 194 | 2100.072 | 5524.454 |
| 195 | 2100.144 | 5422.692 |
| 196 | 2322.082 | 5382.397 |
| 197 | 2321.015 | 5272.706 |
| 198 | 2100.260 | 5257.039 |
| 199 | 2100.381 | 5085.226 |
| 200 | 2306.627 | 5166.339 |

| Point # | Northing | Easting |
|---|---|---|
| 201 | 2364.482 | 5128.332 |
| 202 | 2368.600 | 5005.955 |
| 203 | 2100.462 | 4970.820 |
| 204 | 2608.070 | 4975.413 |
| 205 | 2605.801 | 5184.112 |
| 206 | 2530.716 | 5229.021 |
| 207 | 2420.780 | 5202.413 |
| 208 | 2445.571 | 5489.621 |
| 209 | 2686.329 | 5334.781 |
| 210 | 2814.500 | 5186.258 |
| 211 | 2813.428 | 5290.542 |
| 212 | 2917.699 | 5291.614 |
| 213 | 2643.153 | 5620.670 |

TABLE OF LINES

| LINE | BEARING | LENGTH |
|---|---|---|
| L3 | S84°23'27"E | 40.55' |
| L4 | S84°23'27"E | 40.55' |

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FILE# 200042-C4

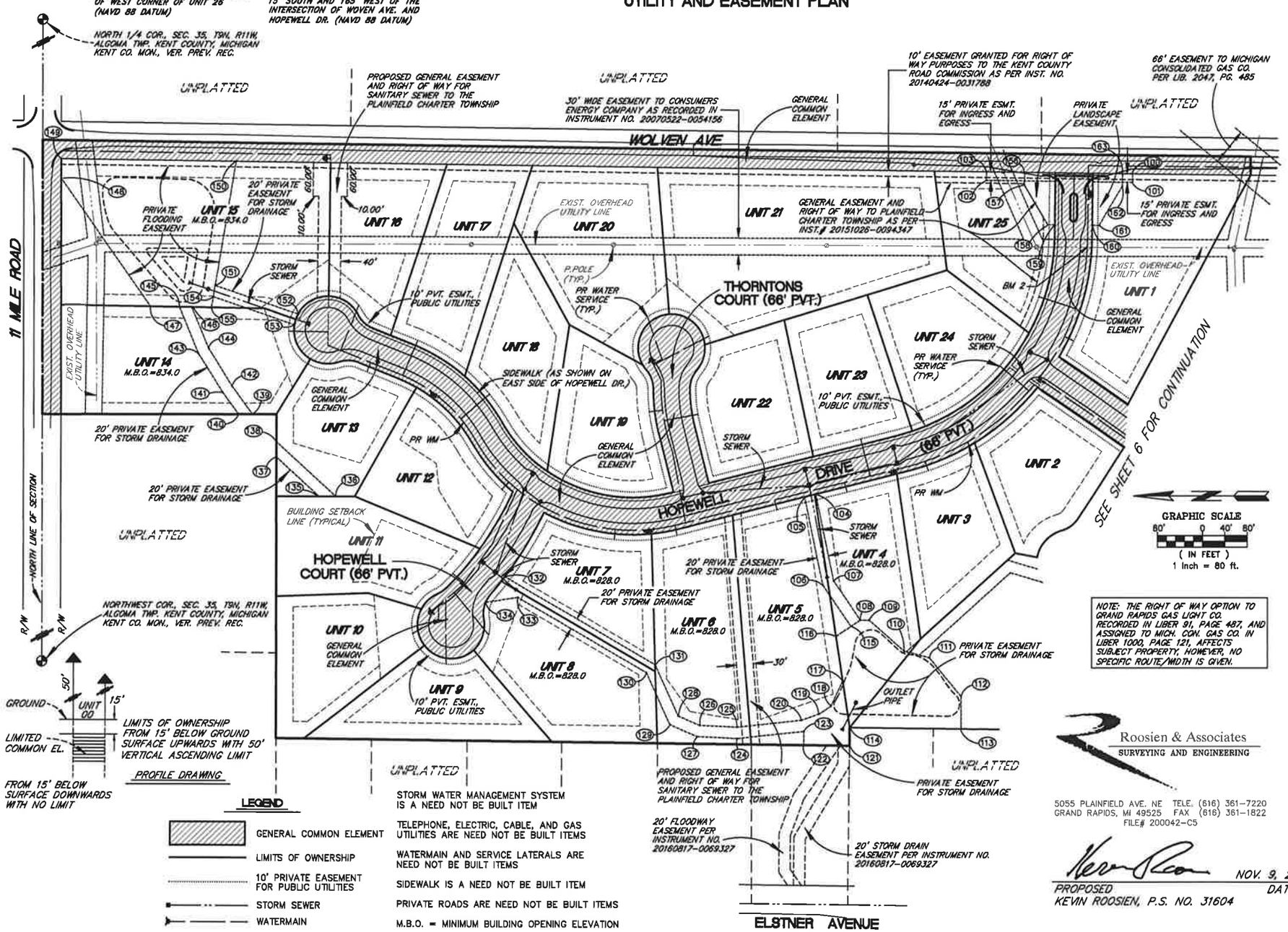
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

# 43 NORTH

## UTILITY AND EASEMENT PLAN




NOTE: THE RIGHT OF WAY OPTION TO GRAND RAPIDS GAS LIGHT CO. RECORDED IN LIBER 91, PAGE 487, AND ASSIGNED TO MICH. CON. GAS CO. IN LIBER 1000, PAGE 121, AFFECTS SUBJECT PROPERTY, HOWEVER, NO SPECIFIC ROUTE/WIDTH IS GIVEN.

### LEGEND

- GENERAL COMMON ELEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

STORM WATER MANAGEMENT SYSTEM IS A NEED NOT BE BUILT ITEM

TELEPHONE, ELECTRIC, CABLE, AND GAS UTILITIES ARE NEED NOT BE BUILT ITEMS

WATERMAIN AND SERVICE LATERALS ARE NEED NOT BE BUILT ITEMS

SIDEWALK IS A NEED NOT BE BUILT ITEM

PRIVATE ROADS ARE NEED NOT BE BUILT ITEMS

M.B.O. = MINIMUM BUILDING OPENING ELEVATION

### TABLE OF COORDINATES

| PT# | NORTHING | EASTING |
|---|---|---|
| 100 | 3059.258 | 6281.374 |
| 101 | 3059.429 | 6266.375 |
| 102 | 3319.752 | 6269.343 |
| 103 | 3319.581 | 6284.342 |
| 104 | 3623.518 | 5711.548 |
| 105 | 3642.918 | 5706.597 |
| 106 | 3610.716 | 5550.284 |
| 107 | 3591.924 | 5558.185 |
| 108 | 3544.961 | 5488.464 |
| 109 | 3529.326 | 5488.491 |
| 110 | 3466.205 | 5433.867 |
| 111 | 3420.676 | 5422.345 |
| 112 | 3364.141 | 5353.567 |
| 113 | 3364.141 | 5296.202 |
| 114 | 3563.389 | 5298.250 |
| 115 | 3561.548 | 5477.291 |
| 116 | 3587.636 | 5459.718 |
| 117 | 3575.803 | 5380.916 |
| 118 | 3596.109 | 5335.723 |
| 119 | 3617.083 | 5322.024 |
| 120 | 3648.016 | 5310.930 |
| 121 | 3563.718 | 5266.252 |
| 122 | 3643.742 | 5267.075 |
| 123 | 3643.493 | 5291.305 |
| 124 | 3761.603 | 5278.421 |
| 125 | 3762.234 | 5298.471 |
| 126 | 3829.757 | 5301.560 |
| 127 | 3834.245 | 5281.744 |
| 128 | 3868.626 | 5317.985 |
| 129 | 3883.594 | 5302.598 |
| 130 | 3925.459 | 5394.495 |
| 131 | 3909.894 | 5408.573 |
| 132 | 4176.209 | 5563.777 |
| 133 | 4153.109 | 5527.166 |
| 134 | 4211.093 | 5518.044 |
| 135 | 4508.206 | 5704.872 |
| 136 | 4478.741 | 5704.939 |
| 137 | 4584.356 | 5774.933 |
| 138 | 4584.418 | 5802.168 |
| 139 | 4627.253 | 5850.277 |
| 140 | 4652.092 | 5850.220 |
| 141 | 4680.783 | 5888.988 |
| 142 | 4664.209 | 5900.213 |
| 143 | 4723.635 | 5958.324 |
| 144 | 4705.758 | 5967.440 |
| 145 | 4757.411 | 6040.613 |
| 146 | 4735.660 | 6040.292 |
| 147 | 4809.861 | 6041.389 |
| 148 | 4969.908 | 6268.286 |
| 149 | 4969.988 | 6303.157 |
| 150 | 4658.224 | 6299.603 |
| 151 | 4694.788 | 6078.653 |
| 152 | 4546.369 | 6028.518 |
| 153 | 4552.738 | 6009.559 |
| 154 | 4698.096 | 6058.660 |
| 155 | 4701.220 | 6039.782 |
| 156 | 3251.373 | 6283.564 |
| 157 | 3251.627 | 6261.270 |
| 158 | 3210.689 | 6190.823 |
| 159 | 3198.470 | 6190.823 |
| 160 | 3132.474 | 6190.070 |
| 161 | 3120.258 | 6189.792 |
| 162 | 3077.724 | 6259.288 |
| 163 | 3077.470 | 6281.581 |

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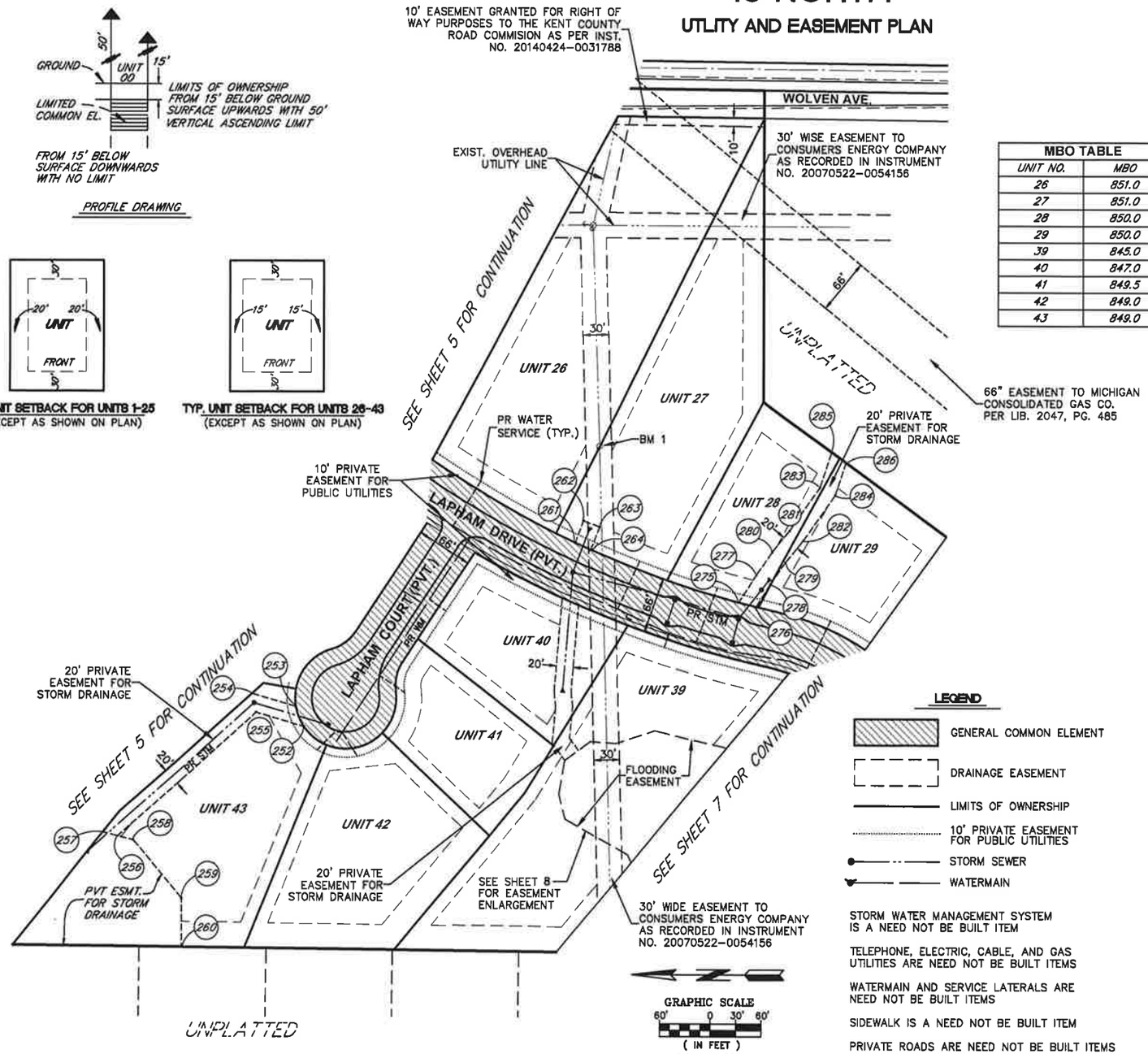
5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C5

NOV. 9, 2020
PROPOSED DATE
KEVIN ROOSIEN, P.S. NO. 31604

STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

# 43 NORTH

## UTLITY AND EASEMENT PLAN




| MBO TABLE | |
|---|---|
| UNIT NO. | MBO |
| 26 | 851.0 |
| 27 | 851.0 |
| 28 | 850.0 |
| 29 | 850.0 |
| 39 | 845.0 |
| 40 | 847.0 |
| 41 | 849.5 |
| 42 | 849.0 |
| 43 | 849.0 |

| TABLE OF POINTS | | |
|---|---|---|
| Point # | Northing | Easting |
| 252 | 3218.799 | 5556.255 |
| 253 | 3228.348 | 5579.907 |
| 254 | 3280.848 | 5595.336 |
| 255 | 3275.796 | 5573.006 |
| 256 | 3438.759 | 5426.921 |
| 257 | 3456.142 | 5431.320 |
| 258 | 3420.676 | 5422.345 |
| 259 | 3364.141 | 5353.567 |
| 260 | 3364.141 | 5296.202 |
| 261 | 2897.353 | 5774.492 |
| 262 | 2887.547 | 5800.251 |
| 263 | 2868.856 | 5793.135 |
| 264 | 2879.113 | 5766.194 |
| 275 | 2703.438 | 5704.346 |
| 276 | 2683.053 | 5699.149 |

| Point # | Northing | Easting |
|---|---|---|
| 277 | 2682.739 | 5737.003 |
| 278 | 2666.109 | 5725.882 |
| 279 | 2647.795 | 5751.869 |
| 280 | 2663.749 | 5763.951 |
| 281 | 2642.991 | 5789.494 |
| 282 | 2627.007 | 5777.451 |
| 283 | 2607.588 | 5840.252 |
| 284 | 2589.527 | 5831.186 |
| 285 | 2593.546 | 5882.430 |
| 286 | 2576.568 | 5870.113 |

**LEGEND**

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

STORM WATER MANAGEMENT SYSTEM IS A NEED NOT BE BUILT ITEM

TELEPHONE, ELECTRIC, CABLE, AND GAS UTILITIES ARE NEED NOT BE BUILT ITEMS

WATERMAIN AND SERVICE LATERALS ARE NEED NOT BE BUILT ITEMS

SIDEWALK IS A NEED NOT BE BUILT ITEM

PRIVATE ROADS ARE NEED NOT BE BUILT ITEMS

M.B.O. = MINIMUM BUILDING OPENING ELEVATION

Roosien & Associates
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5055 PLAINFIELD AVE. NE TELE. (616) 361-7220
GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C6

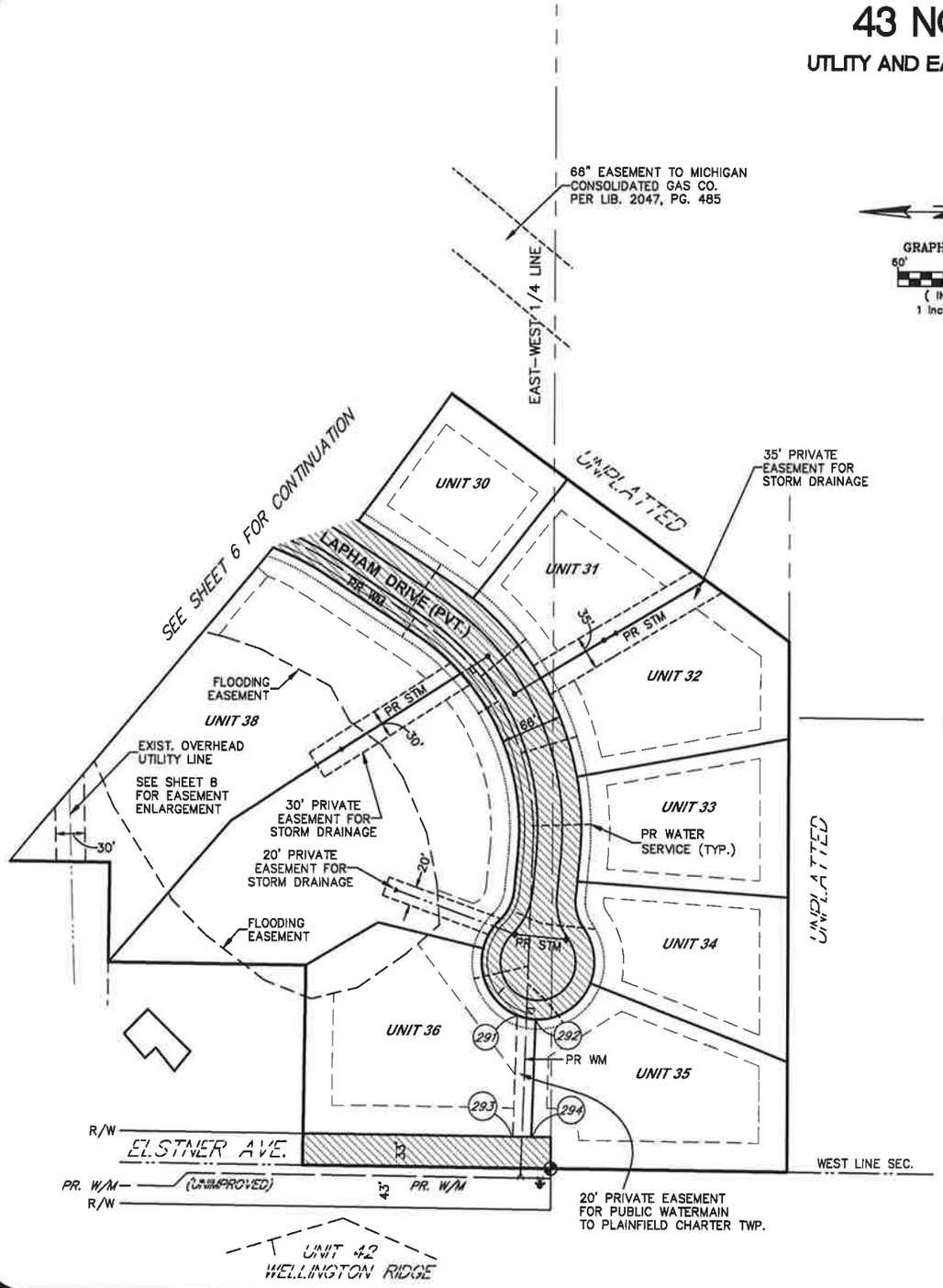
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

# 43 NORTH

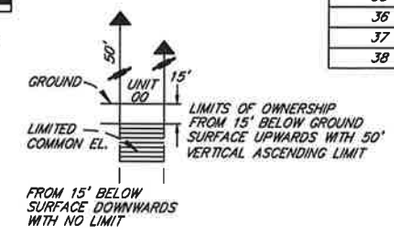
## UTLITY AND EASEMENT PLAN



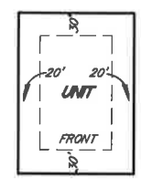

GRAPHIC SCALE
60' 0 30' 60'
( IN FEET )
1 inch = 60 ft.

| MBO TABLE | |
|---|---|
| UNIT NO. | MBO |
| 30 | 855.0 |
| 31 | 856.0 |
| 32 | 856.0 |
| 33 | 850.0 |
| 34 | 845.0 |
| 35 | 845.0 |
| 36 | 845.0 |
| 37 | 847.0 |
| 38 | 847.0 |

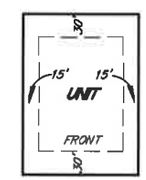
| TABLE OF POINTS | | |
|---|---|---|
| Point # | Northing | Easting |
| 291 | 2384.355 | 5132.434 |
| 292 | 2364.482 | 5128.332 |
| 293 | 2388.605 | 5006.161 |
| 294 | 2368.600 | 5005.955 |




PROFILE DRAWING




TYP. UNIT SETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)




TYP. UNIT SETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

**LEGEND**

- GENERAL COMMON ELEMENT
- DRAINAGE EASEMENT
- LIMITS OF OWNERSHIP
- 10' PRIVATE EASEMENT FOR PUBLIC UTILITIES
- STORM SEWER
- WATERMAIN

STORM WATER MANAGEMENT SYSTEM IS A NEED NOT BE BUILT ITEM

TELEPHONE, ELECTRIC, CABLE, AND GAS UTILITIES ARE NEED NOT BE BUILT ITEMS

WATERMAIN AND SERVICE LATERALS ARE NEED NOT BE BUILT ITEMS

SIDEWALK IS A NEED NOT BE BUILT ITEM

PRIVATE ROADS ARE NEED NOT BE BUILT ITEMS

M.B.O. = MINIMUM BUILDING OPENING ELEVATION

Roosien & Associates
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GRAND RAPIDS, MI 49525 FAX (616) 361-1822
FILE# 200042-C7

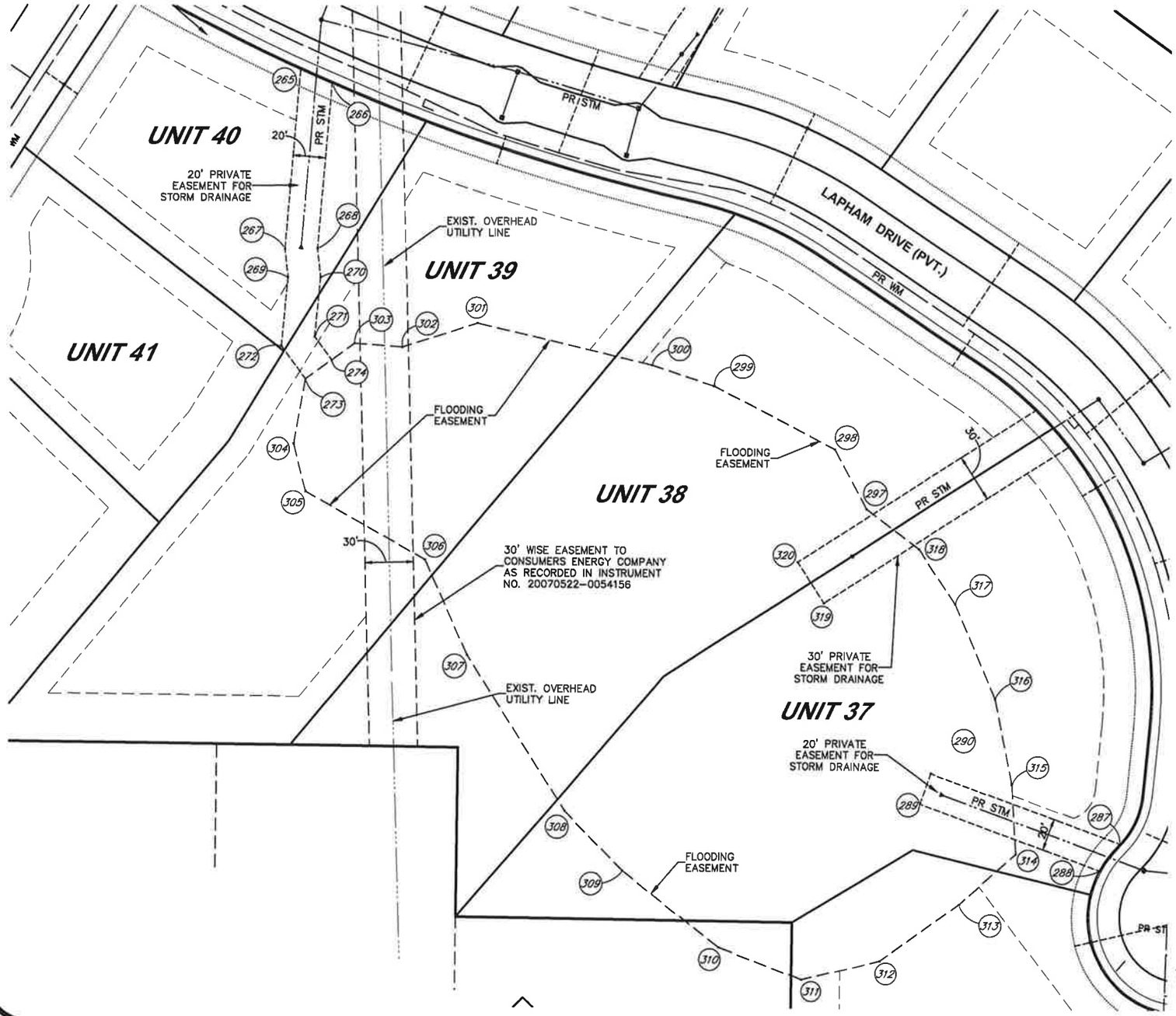
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

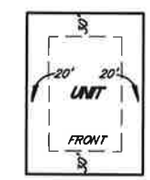
NOV. 9, 2020
DATE

# 43 NORTH

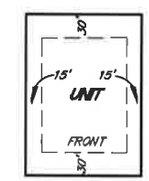
## EASEMENT ENLARGEMENT PLAN




| TABLE OF POINTS | | |
|---|---|---|
| Point # | Northing | Easting |
| 265 | 2912.610 | 5708.882 |
| 266 | 2893.257 | 5700.338 |
| 267 | 2921.937 | 5597.816 |
| 268 | 2901.845 | 5598.068 |
| 269 | 2920.018 | 5580.256 |
| 270 | 2899.915 | 5580.407 |
| 271 | 2903.385 | 5543.551 |
| 272 | 2924.008 | 5537.869 |
| 273 | 2909.047 | 5517.416 |
| 274 | 2892.905 | 5529.224 |
| 287 | 2402.118 | 5233.443 |
| 288 | 2415.197 | 5216.921 |
| 289 | 2526.375 | 5257.421 |
| 290 | 2519.530 | 5276.213 |
| 297 | 2560.916 | 5438.873 |
| 298 | 2580.822 | 5475.785 |
| 299 | 2655.291 | 5514.416 |
| 300 | 2694.221 | 5527.135 |
| 301 | 2802.303 | 5552.389 |
| 302 | 2849.045 | 5537.425 |




TYP. UNIT BETBACK FOR UNITS 1-25
(EXCEPT AS SHOWN ON PLAN)




TYP. UNIT BETBACK FOR UNITS 26-43
(EXCEPT AS SHOWN ON PLAN)

GRAPHIC SCALE
30' 0 15' 30'
( IN FEET )
1 inch = 30 ft.

Roosien & Associates
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FILE# 200042-C8

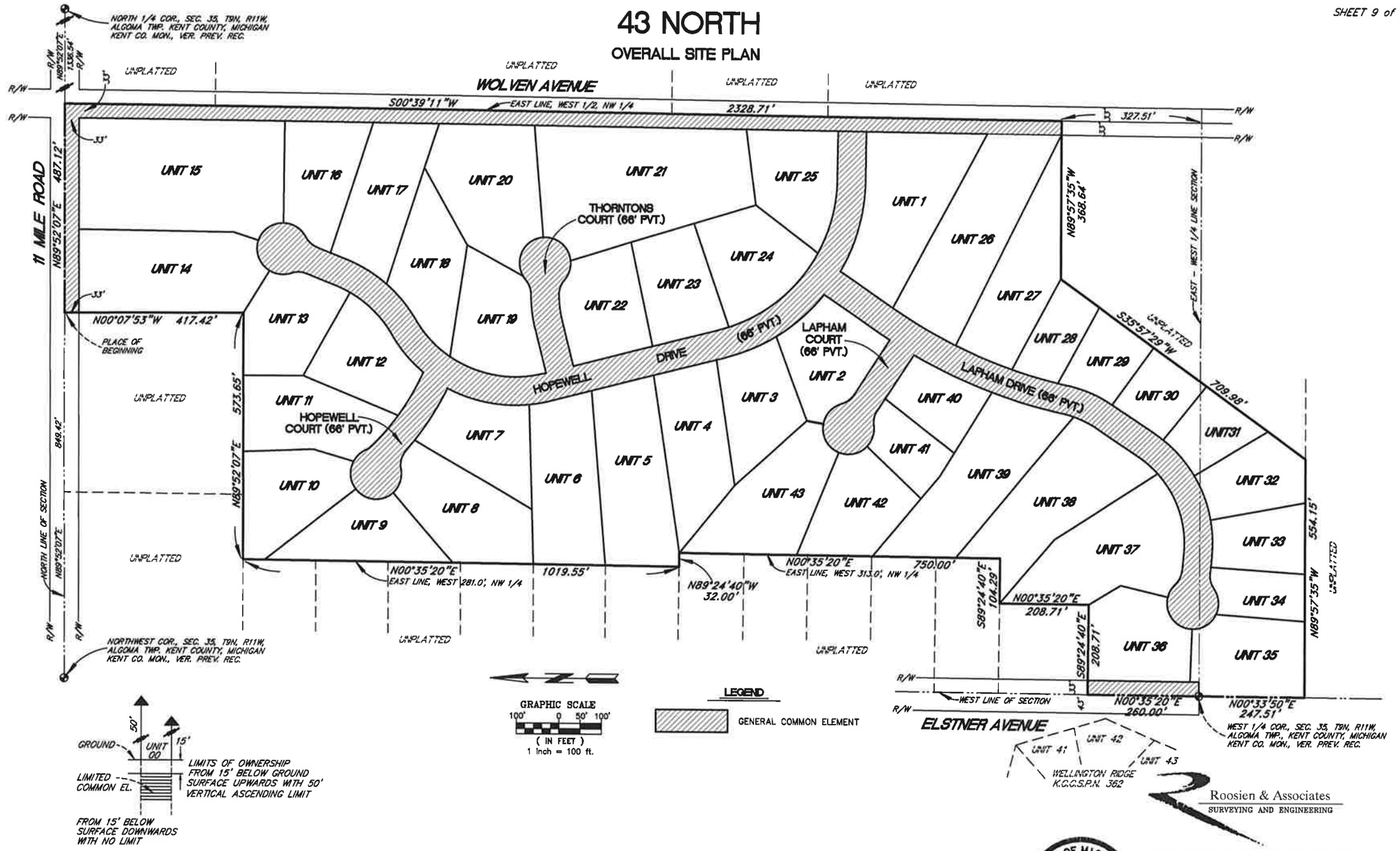
STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

PROPOSED
KEVIN ROOSIEN, P.S. NO. 31604

NOV. 9, 2020
DATE

# 43 NORTH

## OVERALL SITE PLAN

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STATE OF MICHIGAN
KEVIN ROOSIEN
LAND SURVEYOR
No. 31604
PROFESSIONAL SURVEYOR

NOV. 9, 2020
PROPOSED DATE
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